

|    |                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|----|---------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                                       | <p>parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (<a href="http://www.occourts.org">www.occourts.org</a>). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order).</p> <p>Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.</p> <p><b>No earlier hearing date is available for this motion.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 15 | <p>West v. Amen Clinics, Inc., a Medical Corporation, et al.</p> <p>2024-01423922</p> | <p><u>Defendants Amen Clinics, Inc., Amen Clinics Los Angeles, P.C., Amen Clinics Northern California, P.C., Amen Clinics Southern California, P.C., and Mindworks Innovations, Inc.'s Motion to Bifurcate</u></p> <p>Defendants Amen Clinics, Inc., Amen Clinics Los Angeles, P.C., Amen Clinics Northern California, P.C., Amen Clinics Southern California, P.C., and Mindworks Innovations, Inc. move for an order bifurcating the issue of plaintiff Gregory West's employment status and staying class discovery until after a determination of plaintiff's employment status. For the following reasons, defendants' motion to bifurcate is denied without prejudice to addressing bifurcation closer to trial and the motion to stay class discovery is denied.</p> <p>California Civil Procedure Code section 598 states that the court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, with some exceptions that do not appear to apply here. The order shall be made no later than the close of the pretrial conference in cases in which a pretrial conference is to be held or, in other cases, no later than thirty days before the trial date. <i>Id.</i> The court, on its own motion, may make such an order at any time. <i>Id.</i> Civil Procedure Code section 1048(b) states that "[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." <i>See also</i> Civ. Proc. Code § 379.5.</p> <p>The court will hold a pretrial conference approximately 30 days before the trial date. Thus, in this case, and pursuant to section</p> |

598, the court may make an order bifurcating liability and damages at the pretrial conference or, on its motion, "at any time." *Id.*

Defendants present reasons they contend bifurcating the action to try plaintiff's employment status before other issues would be sensible in this case. Plaintiff identifies reasons he opposes bifurcation. The court has insufficient information at this stage of the case to make a bifurcation ruling. Before making any such order, the court intends to review the parties' witness lists and other relevant trial materials, which the court recognizes will likely not be available until closer to the trial date. The court should then have more complete information on which to base a decision about bifurcation. Defendants' motion to bifurcate is denied without prejudice.

Defendants argue class discovery should be stayed because "[A]men Clinics asserts that West will not be able to establish he can act as a representative for a class of non-exempt employees," and "[a]ddressing the narrow issue of whether Plaintiff qualifies as the 'class representative' before discovery as to all other potential 'class members' will be the most efficient way to proceed with the case." Brief (ROA 211) at 9:7-10. Defendants' view of plaintiff's ability to prove his employment status does not constitute good cause to stay class discovery until after plaintiff proves his status. *See, e.g., Williams v. Superior Court* (2017) 3 Cal.5th 531, 558-59 ("[T]he way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing"). Defendants' motion to stay class discovery is denied.

Plaintiff's Request for Judicial Notice (ROA 238) is denied as the materials were not relevant to the disposition of the motion.

Plaintiff to give notice.

#### Status Conference

The court has reviewed the parties' joint status conference statement filed June 5, 2026 (ROA 255), and based thereon continues the June 11, 2026 status conference to September 24, 2026 at 9:00 a.m. in Department CX105.

The parties are ordered to file a joint status conference statement at least 5 court days before the hearing.

Clerk to give notice.